

26PR00608 Matter of the Diane G. Alvarez Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Petition for Order Transferring Interest in Real and Personal Property Held by Trustee to Petitioner

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Tentative Ruling: This matter is CONTINUED to December 4, 2026 at 9:30 a.m. in Department 63 for the reasons set forth below.

All trust beneficiaries are entitled to notice of this petition. California Probate Code section 851(b)(3). There is no proof of service to trust beneficiary Ana Maria G. Alvarez Padilla, and no explanation for the lack of notice.

Also, the Court notes that California Probate Code §850 is not the appropriate statutory basis for bringing the breach of spousal fiduciary duty claim or other tort claims against the settlor-decedent's trust. The Court considers California Probate Code §§19000 et seq. to be the statutory basis for such tort claims. See Prob C §§19000(a), 19001(a), 19008.

As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues at least seven (7) court days in advance of the continued hearing in compliance with local rule 6.2.F.3.